

25STCV35632 25STCV35632

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-08-17

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Case Number: 25STCV35632 Hearing Date: August 17, 2026 Dept: 415

TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

August 17, 2026

CASE NUMBER

25STCV35632

MOTION

Motion to Strike

MOVING PARTY

Defendant Grace Church of the Nazarene

OPPOSING PARTY

Plaintiff Alexys Watson

MOTION

Plaintiff

Alexys Watson ("Plaintiff") brought the instant action against Defendant Grace Church of the Nazarene ("Defendant"), alleging housing discrimination. Defendants move to strike the punitive damages allegations from Plaintiff's complaint.

Plaintiff opposes the motion.

ANALYSIS

Any party, within the time allowed to respond to a pleading, may serve and file a motion to strike the whole pleading or any part thereof.

(Code Civ. Proc., § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322(b).) On a motion to strike, the court may: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782.)

In ruling on a motion to strike punitive damages, "judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth." (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) To state a prima facie claim for punitive damages, a plaintiff must allege the elements set forth in the punitive damages statute, Civil Code section 3294. (*College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704, 721 (*College Hospital*).) Pursuant to Civil Code section 3294, subdivision

(a), a plaintiff must allege the defendant has been guilty of oppression, fraud or malice. "Malice is defined in the

statute as conduct intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (*College Hospital, supra*, 8 Cal.4th at p.

725.) "The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim." (*Grieves v. Superior Ct.* (1984) 157

Cal.App.3d 159, 166, internal citations and footnotes omitted.)

Defendant is an entity. “[T]he imposition of punitive damages upon a corporation is based upon its own fault. It is not imposed vicariously by virtue of the fault of others.” (City Products Corp. v. Globe Indemnity Co. (1979) 88 Cal. App. 3d 31, 36.)

“Corporations are legal entities which do not have minds capable of recklessness, wickedness, or intent to injure or deceive. An award of punitive damages against a corporation therefore must rest on the malice of the corporation’s employees. But the law does not impute every employee’s malice to the corporation. Instead, the punitive damages statute requires proof of malice among corporate leaders: the officers, directors, or managing agents.” (Cruz v. Home Base (2000) 83 Cal. App. 4th 160, 167, internal quotations and citation omitted.)

In the instant case, Plaintiff alleges Defendant is the legal owner of the residential property Plaintiff attempted to rent; an unidentified “staff member” told Plaintiff Defendant would not accept vouchers from the federal Housing Choice Voucher Program, or Section 8, as payment for rent; and co-Defendant Jana Huntley (“Huntley”) was an officer and agent of co-Defendant Envoy Properties, Inc. (Complaint, p. 1, ¶¶ 3, 11, 12.) Plaintiff does not allege, however, Huntley was an officer of Defendant.

Plaintiff does not allege any of Defendant’s officers, directors, or managing agents acted with malice in making the decision not to rent the premises to her. As a consequence, Plaintiff does not allege facts to support a claim for punitive damages against Defendant.

The Court will provide Plaintiff with an opportunity to amend her complaint to cure this deficiency. To the extent, Plaintiff avails herself of that opportunity, the Court impresses upon Plaintiff, as discussed above, for her to prevail in a pleading challenge to her punitive damages claim, she must sufficiently allege Defendant is guilty of oppression, fraud, or malice.

CONCLUSION AND ORDER

Defendant's motion to strike portions of the complaint
is granted with leave to amend. Plaintiff
is to file an amended complaint within 20 days of notice of this order.

Defendant is ordered to provide notice of the
Court's ruling and to file proof of service of same.